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Case Number: 24SMCV02676 Hearing Date: July 20, 2026 Dept: P

Tentative Ruling

Gelvy

Vealsquez Ortiz v. City of Santa Monica, et al., Case No. 24SMCV02676

Ortiz's

Motion for Leave to Amend

Hearing

Date: July 20, 2026

Motion

for Leave to Amend

This is a

personal injury action arising from a car accident that occurred when Defendant Alevizos' vehicle struck Plaintiff Ortiz while he was sitting at a City of Santa Monica Big Blue Bus stop. Ortiz initially sued Alevizos, the City of Santa Monica, and the architects who designed the Big Blue Bus stop for the City of Santa Monica, Lorcan O'Herlihy Architects ("O'Herlihy").

On June

24, 2025, The Court sustained O'Herlihy's demurrer to Ortiz's initial complaint without leave to amend, finding that Plaintiff could not reasonably state a claim under the Government Tort Claims Act against O'Herlihy. (Minute Order (June 24, 2025.), p. 3.)

Ortiz now

moves for leave to amend to add a claim for professional negligence against O'Herlihy based on City of Santa Monica discovery responses allegedly showing that O'Herlihy designed the bus stop to allow all individuals sitting at the bus stop a line of sight to approaching buses but negligently failed to appreciate the increased danger caused by placing some seats closer to the street. (Motion for Leave to Amend, p. 8.)

In opposition, O'Herlihy argues that the proposed amendment brings identical factual claims as the claims that were dismissed without leave to amend, so the Court should not grant Ortiz another opportunity to litigate facts that have already been found inadequate. (Opposition, p. 6.) O'Herlihy also argues that Ortiz's professional negligence claim is barred by the statute of limitations and Plaintiff's failure to timely file a certificate of merit. (Id. at p. 10.) Finally, O'Herlihy argues that it would be prejudiced if leave to amend is granted and that Ortiz's unjustified delay in seeking leave to amend warrants denial. (Id. at p. 13.)

In reply, Ortiz argues that its proposed professional negligence claim is legally distinct from the claim dismissed by the demurrer. (Reply, p. 5.) Ortiz argues that the statute of limitations and the certificate of merit do not bar the claims because it has defenses to the statute of limitations and because it can file the necessary certificate of merit before filing the proposed amended complaint because the proposed amended complaint would be the first pleading to claim professional negligence against an architect. (Id. at pp. 10-13.) Ortiz argues that O'Herlihy will not be prejudiced by the amendment because it remains a cross-defendant in this matter. Ortiz argues that the record establishes their diligence in seeking leave to amend. (Id. at pp. 16-18.)

Procedural
and Jurisdictional Issues

On July 7, 2026, the Court requested additional briefing on its ability to grant a motion for leave to amend after a demurrer is sustained without leave to amend but the defendant is not dismissed.

On July

10, 2026, Ortiz submitted a supplemental brief arguing that the demurrer sustained without leave to amend is not final judgment until the party is dismissed. Here, O'Herlihy was never dismissed. Ortiz contends that O'Herlihy is still participating as a cross-defendant, and that the demurrer ruling is not a final judgment because it does not resolve the underlying legal issues.

On July

10, 2026, O'Herlihy submitted a brief on the Court's ability to grant Ortiz's motion. O'Herlihy argues that the Court has authority to dismiss it from Ortiz's complaint now pursuant to the 2025 demurrer, rendering that judgment final. O'Herlihy also argues that Ortiz's motion should be construed as a motion for reconsideration under Code Civ. Proc. § 1008 and that the motion for leave to amend does not satisfy § 1008's requirements.

An order

sustaining a demurrer without leave to amend is not immediately appealable. It is only appealable when the Court enters judgment dismissing the party. (Cardenas v. Horizon Senior Living (2022) 78 Cal.App.5th 1065, 1069.) "It is clear that where there has been a judgment of dismissal after demurrer sustained without leave to amend or leave to amend is granted but plaintiff fails to amend within the time allowed, the action is finally terminated by the judgment because there is no longer any pending undetermined action to dismiss. It should also be clear that an action is not subject to dismissal where issues of law leading to its final determination have been submitted. . . . It is only by the entry of the judgment that plaintiff is in a position to test the correctness of the court's ruling since there is no appeal from a ruling on a demurrer but only from the ensuing judgment." (Berri v. Superior Court In and For City and County of San Francisco (1955) 43 Cal.2d 856, 859-860, emphasis added.)

After a

demurrer to a complaint is sustained, a plaintiff's right to amend afterward "is always of grace, not of right." (Gautier v. General Tel.Co. (1965) 234 Cal.App.2d 302, 310.) A noticed motion for leave to amend is required. Such a motion may be denied if it is filed following an unwarranted delay. (Leader v. Health Industries of America, Inc. (2001) 89 Cal.App.4th 603, 613.)

Here, the

Court's 2025 demurrer ruling did not resolve the merits of this case to the

extent that the plaintiff was in a position to test the correctness of the court's ruling on appeal. As a practical matter, Ortiz could not appeal because O'Herlihy did not enter judgment. By denying this motion on procedural grounds, the Court would effectively be preventing Ortiz from attempting to state a claim against O'Herlihy for professional negligence because they did not try before the 2025 demurrer was heard. Though O'Herlihy has a good procedural argument, the Court will consider Ortiz's motion for leave to amend in the interest of the Court's general preference for hearing cases on the merits.

On July 7, 2026, O'Herlihy submitted a proposed judgment dismissing it from the action, which would render the 2025 judgment final. Pursuant to the above reasoning, the Court declines to grant that judgment.

Motion
for Leave to Amend

"[I]t is an abuse of discretion to deny leave to amend where the opposing party [is] not misled or prejudiced by the amendment." (Kittredge Sports Co. v. Superior Court (1989) 213 Cal.App.3d 1045, 1048 ("Kittredge").) Prejudice exists where the amendment would require delaying the trial, resulting in loss of critical evidence, or added costs of preparation. (Solit v. Tokai Bank, Ltd. New York Branch (1999) 68 Cal.App.4th 1435, 1448 ("Solit").)

A motion for leave to amend must include a separate declaration specifying: "(1) The effect of the amendment; (2) Why the amendment is necessary and proper; (3) When the facts giving rise to the amended allegations were discovered; and (4) The reasons why the request for amendment was not made earlier." (Cal. Rules of Court, Rule 3.1324(b).) A motion for leave to amend must "[i]nclude a copy of the proposed amendment or amended pleading, which must be serially numbered to differentiate it from previous pleadings or amendments." (Cal. Rules of Court, Rule 3.1324(a)(1).) Moreover, a motion to amend must "[s]tate what allegations in the previous pleading are proposed" to be deleted or added, if any, and must set forth the page, paragraph, and line number of such allegations. (Cal. Rules of Court, Rule 3.1324(a)(2)-(3).)

O'Herlihy's argument that Ortiz's claim for professional negligence is barred by the

statute of limitations and his failure to file a certificate of merit are arguments the Court would consider on a demurrer. Based on the Court's initial review of Ortiz's proposed amended complaint, its professional negligence claims against O'Herlihy are not obviously futile. Since filing this motion, Ortiz has filed a certificate of merit for its claim against O'Herlihy that appears to comply with statutory requirements. Whether or not the certificate is timely and adequate is also better decided on a demurrer.

Though

Ortiz's factual claims against O'Herlihy are similar to the original complaint, Ortiz presents those facts in a different legal framework, supported by new discovery responses from the City of Santa Monica. Those discovery responses were only obtained recently and show that Ortiz brought this motion without unreasonable delay.

O'Herlihy

will likely not be prejudiced by this amendment. Trial in this matter is not scheduled until March 2027, giving O'Herlihy plenty of time to challenge the amended complaint and prepare its defense. O'Herlihy's legal expenses also do not constitute prejudice. Regardless of whether this motion is granted, O'Herlihy will incur legal fees associated with this case because it is still a cross-defendant.

Conclusion

Ortiz's

Motion for Leave to Amend is GRANTED. Ortiz is ordered to file the first amended complaint within ten (10) days.